2:00 PM
LINE 3

23-CIV-00637 ANGEL PADILLA VS DISCOVERY PRACTICE MANAGEMENT, INC.

ANGEL PADILLA	MEHRDAD BOKHOUR
DISCOVERY PRACTICE MANAGEMENT, INC.	NANCY RADER WHITEHEAD

PLAINTIFF'S UNOPPOSED MOTION TO APPROVE THE SETTLEMENT PURSUANT TO THE PRIVATE ATTORNEY'S GENERAL ACT OF 2004

CONTINUED FROM 7/14/2026

TENTATIVE RULING:

The court rules on plaintiff Angel Padilla's second Motion for Approval of Private Attorney General Act (PAGA) Settlement as follows:

On March 10, 2026, this court originally heard the motion and continued it regarding questions the court had. At the July 14, 2026, the court had additional questions. On July 28, 2026, plaintiff's counsel Mehrad Bokhour filed a supplemental declaration responding to those questions. This declaration sufficiently responded to the court's questions.

On February 9, 2023, Plaintiff filed an individual and class action wage and hour lawsuit. On April 14, 2023, Plaintiff filed a first amended complaint adding a PAGA action. On September 5, 2023, with a written order filed November 8, 2023, the court granted in part and denied in party defendant's motion to compel arbitration. The Court compelled plaintiff's individual and class claims to arbitration and stayed the PAGA representative claim. (Order of Nov. 8, 2023.) On September 11, 2025, Defendant filed a notice of related case that this case was related to three cases, one in San Diego Superior Court, one in Los Angeles Superior Court, and one in Orange County Superior Court. The Court has no information about the status of any of these cases.

According to the original motion, it is estimated that there are approximately 2,245 aggrieved employees who worked 63,000 pay periods. The proposed settlement amount is $1,102,500. The settlement will provide a payment of $520,695.63 to the California Labor and Workforce Development Agency (LWDA) (i.e., 75% of the $694,260.84 PAGA Penalties Fund). The remaining $173,565.21 shall be distributed amongst the aggrieved employees.

In ruling on PAGA settlements, this court has a duty to independently determine whether a settlement is fair, reasonable and adequate. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76 77 (*Moniz*), disapproved of on other grounds by *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664 ["trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws."]; see *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129 [" 'The court has a fiduciary responsibility as guardians of the rights of the absentee class members when deciding whether to approve a settlement agreement.' "]; *In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.)

Plaintiff has provided a more detailed analysis of the strength of his claims, and the Court determines that the settlement is fair, reasonable, and adequate in view of PAGA's purposes. Bokhour has provided further information the arbitration, class claims and lawsuits pending in different venues. This additional information confirms that the settlement is fair, reasonable and adequate. The court has granted plaintiff's request to dismiss the class claims without prejudice due to the class action waiver in arbitration agreements.

Plaintiff's counsel Joshua Falakassa previously added several paragraphs to his declaration which describe his specific experience. The parties participated in a mediation session with Abe Melamed, Esq.

Plaintiff has provided notice to the LWDA of the settlement as required by Labor Code section 2699, subdivision (s)(2)). (Bokhour Dec., ¶ 51, Ex. D.)

Plaintiff's counsel has revised the notice letter to accompany penalty checks in accordance with the court's comments.

The court approves the settlement. **However, uncashed checks should go to a cy pres recipient, as with a class action. The parties shall meet-and-confer and APPEAR at the hearing (Zoom appearances are allowed) to discuss the cy pres recipient(s), organizations that meet the requirements of Code of Civil Procedure section 384 and will be for the benefit of San Mateo County and its residents.**

The court grants plaintiff's counsel request of attorneys' fees in the amount of one third of the gross settlement.

The court in reviewing the facts of this case finds that a one-third award is appropriate. (*Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503 (*Lafitte*) ["33 1/3 percent of the common fund is consistent with, and in the range of, awards in other class action lawsuits"]; *Chavez v. Netflix*, *supra*, 162 App. 4th 43, 66 fn. 11 [final fee award was 27.9% of the benefits].)

While a common fund fee is appropriate here, even a proper common fund-based fee award should be reviewed through a lodestar cross-check. (*Lafitte*, *supra*, 1 Cal.5th at p. 503.)

In reviewing the evidence submitted, the court finds that the hourly rates are reasonable. Bokhour provides further information showing the requested rates are reasonable in San Mateo County. (See *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157.) This court also uses its own experience to determine the value of attorneys' fees. (*Spencer v. Collins* (1909) 156 Cal. 298, 306 ["The value of attorney's services is a matter with which a judge must necessarily be familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value."]; *Reynolds v. Ford Motor Company* (2020) 47 Cal.App.5th 1105, 1113-14 ["The trial court acted well within its discretion in using 'the prevailing market value in the community for similar legal services' relying on its personal knowledge and familiarity with the area legal services, as the 'touchstone' for determination" of the reasonable hourly rates.'" (citations omitted)].). This court had extensive experience in class action and other common fund cases while an attorney and has made decisions about attorneys' fees and costs frequently during her time as a judicial officer. The court finds the hourly rates of $750.00 and $725.00 per hour reasonable.

Bokhour provides additional detailed information about the hours expended and the court finds, after reviewing his declaration and the record, that the hours were reasonable, even the work that at first glance appears duplicative. The division of labor was fair and the work justified.

The lodestar amount is lower than the requested fees, but the court awards the requested multiplier of 1.38. The lodestar amount " 'may be adjusted by the court based on factors including ... (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.' ([Citations]" (*Center for Biological Diversity v. County of San Bernardino* (2010) 185 Cal.App.4th 866, 899.) " '[T]he purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class." [Citation] '[T]he unadorned lodestar reflects the general local hourly rate for a fee-bearing case; it does not include any compensation for contingent risk, extraordinary skill, or any other factors a trial court may consider.... The adjustment to the lodestar figure, *e.g.*, to provide a fee enhancement reflecting the risk that the attorney will not receive payment if the suit does not succeed, constitutes earned compensation; unlike a windfall, it is neither unexpected nor fortuitous. Rather, it is intended to approximate market-level compensation for such services, which typically includes a premium for the risk of nonpayment or delay in payment of attorney fees.' [Citation] In cases involving the enforcement of constitutional or statutory rights, "such fee enhancements may make such cases economically feasible to competent private attorneys. [Citation.] '[M]ost lawyers of this quality do seem to consider the prospects of success and the fee recoverable before adding to their crowded calendars a case in which payment is contingent.' " [Citation.] (*Ibid*.) The trial court can consider contingent risk and delay in determining the reasonable hourly rates of the attorneys and not consider it when considering a multiplier. (*California DUI Lawyers Assn. v. Department of Motor Vehicles* (2022) 77 Cal.App.5th 517, 537.)

The court believes that a multiplier is appropriate here because of the fact that plaintiff's counsel has had to wait to get paid for the work they have performed and plaintiff's counsel worked efficiently.

The court approves the costs of $18,239.16 to class counsel as reasonable and necessarily incurred. Bokhour clarified that Phoenix Class Action Administration Solutions is the correct settlement administrator and the court approves its costs up to $12,500.00 as reasonable and necessary.

Plaintiff requests a service award of $10,000, but the court awards $7,500.00 to class representative as a reasonable service fee award. In looking at all the facts of this case, the court believes that it is a fair and appropriate service award. The court acknowledges the important role plaintiff played in the litigation.

The parties shall meet-and-confer and propose at the hearing a date for a compliance hearing (a Tuesday at 2:00 p.m.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The proposed order shall also include other information plaintiff believes is necessary for the order but nothing shall contradict what is in this tentative ruling.

2:00 PM
LINE 4

23-CIV-04076 BILLY STOKES, ET AL. VS. SAN MATEO COUNTY HARBOR DISTRICT

BILLY STOKES	PRO SE
SAN MATEO COUNTY HARBOR DISTRICT	NICHOLAS SYREN

SAN MATEO COUNTY HARBOR DISTRICT'S MOTION TO DISMISS

TENTATIVE RULING:

Defendant San Mateo County Harbor District's Motion to Dismiss this action is GRANTED.

Defendant's request for judicial notice of Plaintiff's First Amended Complaint ("FAC") and this Court's Order Sustaining Defendant's Demurrer to Plaintiff's FAC is GRANTED.

Courts have construed the failure to oppose a motion as having an abandonment of the claims. (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20 ["Plaintiff did not oppose the County's [motion] to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiff to have abandoned the issue."]; *Bell v. Am. Title Ins. Co.* (1991) 226 Cal.App.3d 1589, 1602 [failure to oppose a motion results in a waiver on appeal of any objection to the resulting order.].) This Court believes, especially when the issue is one of law and the opposing party is in pro per, "that the integrity of the judicial process requires … [the Court] to subject every motion to review before granting it." (*California Judge's Benchbook: Civil Proceedings Before Trial* § 6.22 (Thomson Reuters Mar. 2026 update).) Therefore, the Court has substantively reviewed Defendant's motion to dismiss. However as set forth below, the Court also takes note of the failure of Plaintiff to file an opposition, the fact that Plaintiff simply filed the amended complaint rather than seeking leave to file the untimely amended complaint, and that Plaintiff in the amended complaint fails to cure the fatal flaw of the FAC by providing facts showing compliance with the required claims statutes or a reason that an exception applies.

BACKGROUND

This Court sustained Defendant's demurrer to Plaintiff's FAC on April 6, 2026 on the basis that Defendant had not yet been presented with the required government tort claim. The Court granted Plaintiff leave to amend within 10 days of notice of entry of that order. (*See* Defendant's RJN, Ex. B, Order Sustaining Demurrer) Defendant served Plaintiff with notice of the order by mail on April 20, 2026. (Notice of Entry of Order, filed April 20, 2026.) Because service by mail extends a party's deadline to respond by five calendar days, Plaintiff had until May 5, 2026, to file an amended complaint. (Code Civ. Proc., § 1013 [extending deadline to respond by five days where service is made by mail].)